

Electoral services data privacy notice

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Certain departments and services are the data controllers that are separate to the council. This means that whilst they work in a Southwark Council office, the data they collect is not owned by Southwark council. As such they (not the council) are responsible for certain records, processes, and your personal information.

Two separate data controllers from the council are the Electoral Registration Officer (ERO) and the Returning Officer (RO). They collect and use information about:

- residents
- candidates
- election agents
- election and canvass staff

This information is used to carry out specific electoral functions. The ERO's and the RO's primary roles are to:

- register your right to vote
- process your absent voting request
- maintain a register of electors
- run elections and referendums

If you have any questions on electoral registration or elections, please email electoral.enquiries@southwark.gov.uk

What information the ERO and RO collect

To carry out their primary roles, the ERO and the RO keep records about the following groups of people:

- potential and registered electors and citizens
- candidates and their agents
- staff employed at elections
- booking agents and key holders of polling stations
- responsible persons for Route 3 properties
- casual canvassers

The ERO and the RO will record information about you to provide their services. Some information they may record include:

- your name
- your address
- your date of birth
- your nationality
- your National Insurance number or other unique identifiers
- scanned application forms & dates of any letters of correspondence
- copies or details of proof of identity and eligibility
- notes about any relevant circumstances that you have told us

- your current and previous address or any alternative addresses
- the other occupants in your home
- if you are over 76 or under 18
- whether you have chosen to opt out of the open register
- your accessibility requirements
- your elector number
- your signature
- your telephone number(s)
- your email address
- previous or forwarding addresses
- your photo

If you work for the RO on election duties, or for the ERO for registration duties, they may also collect:

- your gender
- details of any disability
- your tax status
- your next of kin and emergency contact details
- details of previous employment
- your vehicle's registration number
- your bank account details

If you are a candidate at an election, an appointed agent at an election or a campaigner they may also hold details on your:

- political party affiliation
- campaign group affiliation

Why they collect the information

The RO and the ERO must record your information to administer electoral registration and election services.

They do not need your consent or permission to use your information as they are required by the following laws to do so:

- Local Government Act 1972
- Representation of the People Act 1983
- Representation of the People Regulations 2001
- Representation of the People (England and Wales) (Amendment) Regulations 2002 and 2006
- European Parliamentary Elections (Registration of Citizens of Accession States) Regulations 2003
- European Parliamentary Elections Regulations 2004
- Local Elections (Principal Areas) Rules 2006
- Representation of the People (England and Wales) (Amendment) (No 2) 2006
- Electoral Administration Act 2006

- Local Authorities (Mayoral Elections) (England and Wales) Regulations 2007
- Greater London Authority Elections Rules 2007
- European Parliamentary Elections (Amendment) Regulations 2009
- The Local Authorities (Mayoral Elections) (England and Wales) (Amendment) Regulations 2011
- Greater London Authority Elections (Amendment) Rules 2012
- Neighbourhood Planning (Referendums) Regulations 2012
- Electoral Registration and Administration Act 2013.

How long information is kept

Your information will be kept on the Electoral Register until:

- you tell us that you have moved address
- we have been informed that you no longer live at a property

The register is reviewed regularly, and updates are published every month. Old copies of the register are then sent to Southwark's archive library. These are public records, and your information will be kept in accordance with statutory time limits.

How information is shared

Information recorded on the electoral register (both full and open) can be accessed and shared with a wide range of people. Your information may be shared with the following people:

- British Library
- UK Statistics Authority
- Electoral Commission
- Boundary Commission for England
- Jury Summoning Bureau
- Elected Representatives (MP, MEPS, Local Councillors)
- Police and Crime Commissioner
- Candidates standing for elections
- Local and National Political Parties and Registered Campaigners
- Southwark Council
- Parish and Community councils
- Police Forces and the National Crime Agency
- Public Library or local authority archive services
- Government departments or bodies (including the cabinet office)
- Credit Reference Agencies
- National Fraud Initiative
- Partner Electoral Registration and Returning Officers

We also must disclose (share) your information with our software providers and contracted printers for the purposes of carrying out our duties of electoral registration and elections.

It is a crime for anyone who has a copy of the full register to pass information from this register on to others if they do not have a lawful reason.

In addition to the above groups, the Electoral Register can be inspected for free by any member of the public. If you are concerned that having your name or address on the electoral register may affect your safety, you may be eligible to register anonymously.

Copies of the open register (an edited copy of the electoral register) can be purchased from the Electoral Registration Officer. Your name and address will be included in the open register unless you ask for them to be removed. Removing your details from the open register does not affect your right to vote.

Staffing data

Staffing data may be shared with other Returning Officers and Electoral Registration Officers as appropriate. All staff details will also be shared with our payroll team, the external payroll service providers, and HMRC to make payments.

Details of candidates, election agents, subscribers to nomination papers and other political campaigners may be published where the law requires.

Your rights

You have the following legal rights over the personal data that we hold:

- to be informed what we are doing with your personal data
- to have copies of your personal data
- to instruct us to stop, or to restrict the processing of your personal data (in certain circumstances)
- to amend the data we hold on you
- to complain about how we are processing your data

If you would like to make a request for any of the above, please email electoral.enquiries@southwark.gov.uk

Or you can make a complaint to the [Information Commissioner's Office](#).